

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jesse Spieler-Jones	Team: Team # 5	CCRB Case #: 200818018	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 12/13/2008 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/13/2010	Precinct: 47
Date/Time CV Reported Mon, 12/15/2008 10:34 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/15/2008 10:34 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Timothy Dowling	01693	932571	047 PCT
2. POM Michael Verbrugge	16823	940835	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Timothy Dowling	Abuse: Sgt. Timothy Dowling entered and searched § 87(2)(b) in the Bronx.	A . Exonerated
B . POM Michael Verbrugge	Abuse: PO Michael Verbrugge entered § 87(2)(b) in the Bronx.	B . Exonerated
C . SGT Timothy Dowling	Force: Sgt. Timothy Dowling used physical force against § 87(2)(b)	C . Exonerated

Synopsis

On December 13, 2009, § 87(2)(b) called 911 from her house at § 87(2)(b) in the Bronx to report that § 87(2)(b)'s step-mother who lives next door, had a knife and had stolen money from her father, § 87(2)(b). At 5:58pm, Sgt. Timothy Dowling and PO Michael Verbrugge arrived at § 87(2)(b)'s residence and, after speaking briefly with § 87(2)(b), knocked on § 87(2)(b)'s front door. When § 87(2)(b) opened his front door and the § 87(2)(b) began speaking with the officers, both officers entered the foyer of § 87(2)(b)'s residence (Allegations A and B). After speaking briefly with the § 87(2)(b), Sgt. Dowling - with the assistance of PO Verbrugge - moved § 87(2)(b) against a wall and handcuffed her (Allegation C). § 87(2)(b) stated that she was cold and was in need of a coat, and Sgt. Dowling then ascended the stairs that lead out of the foyer into § 87(2)(b)'s kitchen to retrieve her coat (Allegation A continued). While in § 87(2)(b)'s kitchen, Sgt. Dowling observed a knife on § 87(2)(b)'s counter. § 87(2)(b) identified the knife as the knife that she had been menaced with, and Sgt. Dowling and PO Verbrugge placed § 87(2)(b) into their vehicle and escorted § 87(2)(b) to the 47th Precinct stationhouse. § 87(2)(b) was released later that night when § 87(2)(b) opted to drop the charges. § 87(2)(b) sought medical attention at § 87(2)(b) the following day.

§ 87(2)(g) it is recommended that Allegations A and B be closed as **exonerated**. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation C be closed as **exonerated**.

This case, which was initially assigned to Inv. Paris, was reassigned to Inv. Spieler-Jones on April 30, 2009 upon Inv. Paris's departure from the CCRB.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) light-skinned black female with black hair, brown eyes and § 87(2)(b) who is § 87(2)(b) and § 87(2)(b). At the time of the investigation, § 87(2)(b) was § 87(2)(b) made statements regarding this incident to the psychiatric department of § 87(2)(b) on § 87(2)(b) (encl. 19r), in filing the complaint with the CCRB on December 15, 2008 (encl. 7a-b), in a telephone statement on December 19, 2008 (encl. 8a), in her interview at the CCRB on December 22, 2008 (encl. 9a-h), and over the telephone to the undersigned on May 27, 2009 (encl. 10a). § 87(2)(g)

§ 87(2)(b) lives in a duplex at § 87(2)(b) in the Bronx that is owned by her husband, § 87(2)(b). Her step-daughter, § 87(2)(b) with whom she has an acrimonious relationship, lives next door. § 87(2)(b) described the entrance to her house as a "little walkway" that is past a front gate. There are two doors at the house's entrance: a front glass door and a second interior door. The front door opens on to a small hallway/ landing area, after which there is a staircase going up to the § 87(2)(b) apartment. § 87(2)(b)'s bedroom is on the § 87(2)(b) floor of the duplex and the kitchen and other rooms are on the § 87(2)(b) floor. The § 87(2)(b) front door is separated from § 87(2)(b)'s front door by a railing.

On December 13, 2008¹, at approximately 7:00pm, § 87(2)(b) was at home with § 87(2)(b) when she saw through her window that a police officer was crossing the street and ascending her front steps. She told her husband and together they went down the stairs to the front door of their duplex, at which point they heard a knock. § 87(2)(b) opened the door while § 87(2)(b) stood beside him, and § 87(2)(b) saw three police officers, two of whom - a white male with a medium build who was 5'6", wearing a hat and a name plate with the name "Dowling" on it, and in his thirties with no facial hair or glasses and who was identified by this investigation as Sgt. Timothy Dowling and a white male with brown eyes and a straight pointy nose who was between 5'7" and 5'8", had a medium build and was in his thirties and who was identified by this investigation as PO Michael Verbrugge - were in uniform. The plainclothes officer, who could not be identified by this investigation and the status of whose presence at the location could not be determined, was a white male in a green jacket, jeans and a hat who was between 5'6" and 5'8", of medium build and in his thirties. The plainclothes officer may have arrived in a separate car. Sgt. Dowling

¹ In her sworn statement, § 87(2)(b) stated both that § 87(2)(b) had consumed an unknown amount of alcohol that day and that § 87(2)(b) had not seen § 87(2)(b) drink that day. However, in a follow-up telephone conversation (see pg. 10), § 87(2)(b) confirmed that § 87(2)(b) had in fact been drinking that day. § 87(2)(b) did not consume any intoxicating substances.

and PO Verbrugge entered the building while the plainclothes officer remained outside and held the screen door open. Neither § 87(2)(b) nor § 87(2)(b) invited the officers in or stepped aside to accommodate their entry.

Sgt. Dowling then accused § 87(2)(b) of stealing her husband's money and making threats with a knife. § 87(2)(b) did not know why the officers were there but she suspected that it was related to a complaint made by her step-daughter. Both § 87(2)(b) and her husband told Sgt. Dowling that the allegation was not true, at which point Sgt. Dowling, who had been standing to § 87(2)(b)'s right, grabbed § 87(2)(b) who had been standing still and had not been gesturing with her arms, by the back of her shoulders and "slammed" her against the wall using the maximum possible force of his body so that her chin hit the wall first and bore the brunt of the impact. § 87(2)(b)'s forehead also made contact with the wall. § 87(2)(b) began to tremble and lost consciousness for approximately one minute and regained consciousness when she began to urinate.

When § 87(2)(b) regained consciousness, Sgt. Dowling was handcuffing her. § 87(2)(b) then looked in the direction of her husband and stated that she was cold and wanted her jacket. § 87(2)(b) continued to tell Sgt. Dowling that § 87(2)(b)'s claims were not true, and Sgt. Dowling told him to stay out of it and walked up the steps leading to § 87(2)(b) and § 87(2)(b)'s apartment. (The staircase has two landings, at which points the stairs change direction. There is no separate door to the § 87(2)(b) floor of the duplex, and that nobody knew where Sgt. Dowling was going, followed him upstairs, or objected to his ascension of the stairs. There were no other people in the house at this time.) PO Verbrugge remained in the landing/hallway area with § 87(2)(b) and § 87(2)(b). PO Verbrugge then held § 87(2)(b)'s right wrist by the handcuffs and turned her around in order to allow her to put on her shoes. § 87(2)(b) reported that, because Sgt. Dowling had not fully closed the handcuffs, she had sustained bruises from the handcuffs sliding on her arms. At the time of her interview, § 87(2)(b) had visible bruises on the upper shoulders of both arms and reported that, since the incident, she has felt depressed.

Approximately five minutes after going up the stairs, Sgt. Dowling returned with a knife that § 87(2)(b) described as approximately 10" long with a broad blade. During her interview, § 87(2)(b) stated that she had recognized the knife, but also stated that there was no knife like that inside of her house. § 87(2)(b) again told the officers that § 87(2)(b) had not threatened anyone with a knife and asked Sgt. Dowling where he had obtained the knife from. Sgt. Dowling then walked out of the house. Sgt. Dowling then went to § 87(2)(b)'s apartment. § 87(2)(b) followed Sgt. Dowling into his daughter's apartment while PO Verbrugge took § 87(2)(b) who was upset, to the patrol car. Five minutes later, Sgt. Dowling exited § 87(2)(b)'s house and then drove § 87(2)(b) to the 47th Precinct stationhouse with PO Verbrugge. § 87(2)(b) did not see the plainclothes officer again. At the stationhouse, § 87(2)(b) noticed that her chin was swollen and had large bruises on it. Officers gave § 87(2)(b) a form to be taken to the hospital, but she did not sign it because she wanted to change into dry clothes before going.

§ 87(2)(b) was taken to Bronx Central Booking and then taken back to the 47th Precinct stationhouse, from which she was released at approximately 2:00am. Upon her release, § 87(2)(b) asked § 87(2)(b) to take her to the hospital, but § 87(2)(b) told her that it was too late. The next day, § 87(2)(b) called a cab and went to § 87(2)(b) where X-rays were taken. § 87(2)(b) was discharged at approximately § 87(2)(b). § 87(2)(b) then returned to the stationhouse, where an officer gave her the number for the CCRB. § 87(2)(b) then went home and filed her complaint.

Results of Investigation

Civilian Statements

Victim

§ 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes who is § 87(2)(b). § 87(2)(b) made statements regarding this incident in his telephone statement to the CCRB on December 24, 2009 (encl. 11a) and in his interview at the CCRB on December 30, 2009 (encl. 12a-f). § 87(2)(g)

§ 87(2)(b)'s daughter, § 87(2)(b) accused § 87(2)(b) of stealing rent money, and an argument between § 87(2)(b) and § 87(2)(b) ensued in which the two cursed and called each other names as loud as they possibly could have. § 87(2)(b) and § 87(2)(b) threatened each other and said things to the effect of, "I'm going to kick your such and such," but neither mentioned a knife or any kind of weapon. After three or four minutes, § 87(2)(b) went back into the apartment and closed the door, and § 87(2)(b)

banged on the § 87(2)(b) door and said, "Come on out! Let's fight!" § 87(2)(b) continued cursing at § 87(2)(b). Between five and ten minutes later, the police arrived. § 87(2)(b) could see § 87(2)(b) speaking to two uniformed officers outside of her apartment for a couple of minutes, but he could not hear their conversation.

Approximately five minutes later, § 87(2)(b) told § 87(2)(b) that she wanted to speak to the police, and both § 87(2)(b) went downstairs. When they opened the door, the § 87(2)(b) saw two uniformed officers, who were identified via investigation as Sgt. Timothy Dowling and PO Michael Verbrugge, and a plainclothes officer who could not be identified and whose presence at the location could not be established by the investigation. Both uniformed officers were heavysset white males who were between 5'11" and 5'11" and approximately 240 lbs and 36 or 37 years old. The plainclothes officer was wearing a grey jacket and grey army fatigues and appeared to § 87(2)(b) to be a "Park Police." He had arrived in a "Jeep type van" that may have had green writing on the side, and he was a slender white male who was between 5'9" and 5'10", approximately 170 lbs and 26 or 27 years old with no hat or glasses and some amount of facial hair.

The plainclothes officer stepped inside and one of the uniformed officers told § 87(2)(b) that the officers had to speak to him. While the door was slightly open and the police were standing in front, § 87(2)(b) and § 87(2)(b) continued their "verbal, nasty-mouth" exchange. § 87(2)(b) remained standing outside on her side of the gate until the officers left.

§ 87(2)(b) told the plainclothes officer that his wife had not stolen any money and disputed the officer's subsequent claim that she had a knife. Without any warning, the plainclothes officer turned § 87(2)(b) around, "knocked her against the wall" and handcuffed her. § 87(2)(b) asked the officers what they were doing and § 87(2)(b) told her to be careful. The officers told § 87(2)(b) something to the effect of "it's not your business," and the plainclothes officer walked past § 87(2)(b) and went upstairs. The plainclothes officer then returned with a knife in his hand and walked out of the house. Meanwhile, § 87(2)(b) was crying and had urinated on herself. The plainclothes officer may have gone to § 87(2)(b) and asked her if the knife he had retrieved was the knife that § 87(2)(b) had been menaced with, but § 87(2)(b) was not sure of the exchange. § 87(2)(b) had never seen the knife before. § 87(2)(b) was then escorted to the officers' vehicle. During his telephone statement, § 87(2)(b) stated that, because of past experiences, he feared that he or his wife would be shot by the officers. At some point, § 87(2)(b) begged § 87(2)(b) to drop the charges.

Witness

§ 87(2)(b) is a § 87(2)(b) black female § 87(2)(b). § 87(2)(b) made statements regarding this investigation in her call to 911 on December 13, 2008 (encl. 13a) and in her telephone statement to the CCRB on January 9, 2008 (encl. 13b-c). § 87(2)(g) § 87(2)(b) stated that she did not want to participate with the investigation aside from providing a telephone statement.

On December 13, 2008, at some point between 6:00pm and 7:00pm, § 87(2)(b) was talking to her father, § 87(2)(b) while each was standing in the vicinity of his and her respective doorway. § 87(2)(b)'s son, § 87(2)(b) was present as well. § 87(2)(b) complained to § 87(2)(b) that his wife had picked up money from his tenant, and § 87(2)(b) told § 87(2)(b) that § 87(2)(b) did not have the right. At some point, § 87(2)(b) came downstairs, "cursed § 87(2)(b) out." § 87(2)(b) then ran back upstairs. As § 87(2)(b) came back downstairs, § 87(2)(b) looked into § 87(2)(b)'s apartment and saw that § 87(2)(b) had a "shiny object" in her hand. § 87(2)(b) was standing in the doorway at this time. At some point § 87(2)(g) § 87(2)(b) threatened to "stick § 87(2)(b) with a knife." § 87(2)(b) and § 87(2)(b) then looked at each other, and § 87(2)(b) slammed the door. § 87(2)(b) then called 911 and reported that § 87(2)(b) had stolen money from § 87(2)(b) and threatened him with a knife.

§ 87(2)(b) was in her apartment when she saw police lights outside. § 87(2)(b) exited her apartment, and § 87(2)(b) and § 87(2)(b) exited their apartment at approximately the same time. Two officers - a uniformed white male with a clean shaven face, a very slim build and short cropped light-colored hair who was in his late twenties or early thirties and approximately 5'7" or 5'8" and 160-170 lbs and a uniformed white or Hispanic officer who § 87(2)(b) could not describe - approached the duplex. No other officers were on the scene at this time. The officers asked who had called, and § 87(2)(b) said that

she had. The officers asked § 87(2)(b) what had happened, and § 87(2)(b) started "screaming and yelling," so much so that the light-skinned officer repeatedly told her to be quiet. The officer with the light-colored hair ultimately had to stop speaking with § 87(2)(b) because § 87(2)(b) would not stop yelling.

At some point, § 87(2)(b) said to the officer with the light-colored hair, "Come in officer, come in, come in, I have a lot to tell you," and the officer with the light-colored hair walked through the front door of § 87(2)(b)'s apartment and into a walkway at the base of a flight of stairs. § 87(2)(b) was unsure of where the officer who § 87(2)(b) could not describe was at this time.) § 87(2)(b) continued to yell and behave "erratically" while gesturing with her hands. At some point, the officer with the light-colored hair "spun § 87(2)(b) around" and handcuffed her. § 87(2)(b) stated that she did not recall § 87(2)(b) making any contact with the wall.) § 87(2)(b) began to cry and told the officer with the light-colored hair that she would "have his badge" and threatened to sue the officers. At some point, the officer who § 87(2)(b) could not describe walked down the stairs holding a knife. The officer who § 87(2)(b) could not describe showed § 87(2)(b) the knife and asked if it was the object that she had seen, and § 87(2)(b) replied that it looked like it. The officer who § 87(2)(b) could not describe asked § 87(2)(b) if she wanted to press charges, and § 87(2)(b) replied that she did. The officers then began to escort § 87(2)(b) to the police car. At some point, § 87(2)(b) went upstairs to his apartment and returned with § 87(2)(b)'s shoes. § 87(2)(b) was then taken to the stationhouse.

Throughout the incident, both officers were extremely patient and professional. § 87(2)(b) stated that she did not see any bruises on § 87(2)(b) and that the officer with the light-colored hair had not done anything to § 87(2)(b) that would cause bruises. § 87(2)(b) also stated that the whole incident was "crazy" and that she has not been involved in anything like this incident before.

Witnesses Not Interviewed

§ 87(2)(b)

§ 87(2)(g)

Officer Statements

CCRB Statement and Memo Book: Sgt. Timothy Dowling

Sgt. Timothy Dowling was interviewed at the Civilian Complaint Review Board on January 27, 2009 (encl. 15a-c). Sgt. Dowling is a § 87(2)(b)-old white male, § 87(2)(b), with brown hair and brown eyes. On December 13, 2009, Sgt. Dowling worked from 2:50pm to 11:47pm in a marked patrol car (2232) with PO Michael Verbrugge. § 87(2)(g)

At approximately 7:00pm on December 13, 2008, Sgt. Timothy Dowling received a radio run about a family dispute with a knife at § 87(2)(b) in the Bronx. When Sgt. Dowling and PO Verbrugge arrived, they met with § 87(2)(b). § 87(2)(b) had been waiting for the police outside with her door open. She told the officers that her step-mother had taken about \$1600 from her father and that she had threatened § 87(2)(b) with a big kitchen knife that was approximately one foot long. § 87(2)(b) also stated that she had confronted § 87(2)(b) shortly before she called the police. § 87(2)(b) stated that she had seen the knife and that § 87(2)(b) lived next door. The officers spoke to § 87(2)(b) for less than five minutes.

The officers then went next door to speak to § 87(2)(b)'s father, § 87(2)(b) to see if there had been money stolen, as the alleged theft could potentially constitute grand larceny. Sgt. Dowling either knocked on the door or rang the doorbell, and § 87(2)(b) opened the door, which opens into a foyer area. Sgt. Dowling asked if he could speak to § 87(2)(b) and § 87(2)(b) said yes and stepped back. No one voiced any objection to the officers entering the foyer at any time. § 87(2)(b) explained that his wife, § 87(2)(b) had taken money for a rental property and that § 87(2)(b) and § 87(2)(b) had gotten into an argument about the money, but § 87(2)(b) did not want to press charges against his wife, despite the fact that his wife had not been permitted to collect the money. Sgt. Dowling did not inquire about the knife because he was primarily concerned with the possible grand larceny, and he and § 87(2)(b) only spoke for about a minute before § 87(2)(b) came downstairs. § 87(2)(b) who was screaming and upset, acknowledged that she had had a dispute with § 87(2)(b) about money. At this time, § 87(2)(b) was

making eye contact with Sgt. Dowling in such a way as to suggest hostility. § 87(2)(b) said that she had been arguing with § 87(2)(b) but that she did not have a knife. At this time, § 87(2)(b) was irate and was not amenable to reasonable or coherent discussion.

After approximately one or two minutes, Sgt. Dowling explained that § 87(2)(b) would have to come down to the stationhouse with the officers for menacing § 87(2)(b) with a knife, and § 87(2)(b) began to yell that she was not going anywhere. § 87(2)(b) told § 87(2)(b) to stop and relax. § 87(2)(b) repeatedly told his wife to calm down throughout the incident.) When Sgt. Dowling tried to handcuff § 87(2)(b) she pulled her arm away, and he and PO Verbrugge each grabbed one of § 87(2)(b)'s wrists. Sgt. Dowling told § 87(2)(b) "You have to come with us. Stop resisting." Each officer then used both of his hands to grab § 87(2)(b)'s hands and place them behind her back as gently as possible (given her age) while at the same time placing § 87(2)(b) against the wall and handcuffing her. § 87(2)(b) was moving her shoulders and body, but she did not present any other physical resistance. Sgt. Dowling estimated that the foyer was about 4-5' wide, and that he only traveled a couple of inches to place § 87(2)(b) against the wall. There was not a significant amount of force used, and § 87(2)(b) did not later complain of pain or injury. However, § 87(2)(b) was irate and became more so when she was in handcuffs, which had taken about 5 seconds to secure.

Immediately afterward, § 87(2)(b) began screaming that she wanted a coat. Sgt. Dowling told PO Verbrugge to take § 87(2)(b) to the police car because § 87(2)(b) was still outside and the situation was not getting resolved. § 87(2)(b) was on the patio and did not become involved in the interaction in the foyer. Sgt. Dowling, who felt bad that § 87(2)(b) was being arrested, did not know where § 87(2)(b)'s coat was, but thought that it may have been on a coat rack or somewhere immediately visible, and consequently went upstairs to retrieve § 87(2)(b)'s coat. No one objected to Sgt. Dowling going upstairs. At the top of the stairs was a hallway to the right, and to the left was an open common area with a kitchen counter on the right as well as a living room. Sgt. Dowling did not find a coat. However, Sgt. Dowling did find a large kitchen knife with a black or § 87(2)(b) handle that matched § 87(2)(b)'s description of the knife that § 87(2)(b) had menaced her with. There were no other knives visible. Sgt. Dowling then heard § 87(2)(b) and one or more individuals yelling downstairs. After picking up the knife, Sgt. Dowling went back downstairs, where § 87(2)(b) stated that he would bring everything that § 87(2)(b) needed to the precinct. While § 87(2)(b) did not make reference to the knife at any point, § 87(2)(b) confirmed that it was the knife that § 87(2)(b) had menaced her with. § 87(2)(b) stated that she would be coming to the stationhouse as well. No other officers besides Sgt. Dowling and PO Verbrugge arrived on the scene of the incident.

CCRB Statement, Memo Book and Arrest Report: PO Michael Verbrugge

PO Michael Verbrugge was interviewed at the Civilian Complain Review Board on January 13, 2009 (encl. 18 a-c). PO Verbrugge is a § 87(2)(b) old white male who is § 87(2)(b) tall and weighs § 87(2)(b). He has a bald head and blue eyes.

On December 13, 2008, PO Verbrugge worked between the hours of 3:00pm and 11:35pm. PO Verbrugge was assigned to marked patrol car 2232 as patrol supervisor's operator for Sgt. Timothy Dowling. PO Verbrugge filled out a criminal complaint report (encl. 21 a-b) and arrest report (16 a-b) for § 87(2)(b). The report notes that § 87(2)(b) was arrested for threatening § 87(2)(b) with a knife. § 87(2)(b) was charged § 87(2)(b).

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(b)

When PO Verbrugge and Sgt. Dowling knocked on the door of § 87(2)(b) and § 87(2)(b)'s apartment, PO Verbrugge heard a woman inside yell something to the effect of, "Who is it?" and either § 87(2)(b) or § 87(2)(b) then opened the door. At this point, § 87(2)(b) and § 87(2)(b) were both standing at the foot of the stairs in the foyer. The officers asked if they could come in and explained that they just wanted to talk to the § 87(2)(b) to see what was going on. § 87(2)(b) then opened the door and told his wife to speak to the officers. § 87(2)(b) immediately became very agitated and began yelling statements to the effect of, "I told her I'm the woman of the house! I went to get that money, yes I did do that!" and "I did not threaten her!" At this time, PO Verbrugge and Sgt. Dowling entered the foyer and stood side by side in front of the door. Neither § 87(2)(b) nor § 87(2)(b) told the officers to leave or said that the officers were not allowed inside.

§ 87(2)(a) PBH §18(6)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Police Documents

Radio Portion of Communications CD for Sprint # § 87(2)(b) (encl. 14c)

The radio portion of the communications CD for this incident indicates that a radio run was put out to available 47th Precinct sectors that there was a family dispute at § 87(2)(b) in the Bronx involving a knife. The dispatcher stated that the caller was an off-duty corrections officer and that a possible EDP who was still at the location had threatened the caller's father with a knife. The 47th Precinct sergeant who was currently on patrol responded, and the dispatcher informed the sergeant that the caller had stated that her father's wife – a black female wearing black sweatpants who may be in her fifties – had a knife. At 6:09pm, the sergeant who took the call reported one under arrest.

Mugshot Pedigree (NYSID#: § 87(2)(b) (encl. 23a)

§ 87(2)(b)'s mugshot pedigree indicates that there were no visible injuries to § 87(2)(b)'s face at the time that the photograph was taken.

Tour 3 Roll Call for December 13, 2008 (encl. 26a-l)

According to the Tour 3 Roll Call, Sgt. Dowling (932571) was assigned to vehicle 2232 as a patrol supervisor and worked from 2:50pm to 11:47pm. PO Verbrugge (940835) was assigned to work as the sergeant's operator.

Command Log for December 13, 2008 (encl. 27a-h)

According to the Command Log for December 13, 2008, PO Verbrugge arrested § 87(2)(b) § 87(2)(b) at § 87(2)(b) at approximately 6:09pm. § 87(2)(b) was in apparently normal physical and mental condition, had no visible injuries and was debriefed by the arresting officer. § 87(2)(b) is described as a black female. No funds or property were vouchered. This entry was made at 6:20pm.

Prisoner Holding Pen Roster for December 13, 2008 (encl. 28a-b)

There are no entries for § 87(2)(b) on the Prisoner Holding Pen Roster.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian CCRB History (encl. 5a)

This is § 87(2)(b)'s first complaint with the CCRB.

Notice of Claim (encl. 31a)

There are currently no claims on file with the Office of the Comptroller.

Police Officer CCRB History (encl. 3a-4a)

Sgt. Timothy Dowling has five years of tenure and no previously substantiated CCRB complaints for which discipline has been imposed. Sgt. Michael Verbrugge has three years of tenure and no previously substantiated CCRB complaints for which discipline has been imposed.

Conclusions and Recommendations

Officer Identification

During the incident, § 87(2)(b) observed the name “Dowling” written on Sgt. Dowling’s name plate. PO Verbrugge is listed as Sgt. Dowling’s partner for the day of the incident. Furthermore, both officers provided sworn testimonies to the CCRB in which they stated that they were the only two officers who arrived on the scene of the incident and entered § 87(2)(b)’s foyer. § 87(2)(g)

Although both Sgt. Dowling and PO Verbrugge both stated that both officers were involved in handcuffing § 87(2)(b), § 87(2)(b) consistently identified Sgt. Dowling as the officer who allegedly pushed her into the wall. § 87(2)(g)

§ 87(2)(g)

Undisputed Facts

The following facts are **not in dispute**: On December 13, 2008, Sgt. Timothy Dowling and PO Michael Verbrugge responded to § 87(2)(b) in the Bronx following a 911 call that was made by § 87(2)(b) who had alleged that her step-mother, § 87(2)(b) had stolen money from her father and had a knife. Upon arriving, the officers spoke with § 87(2)(b) and then spoke with the § 87(2)(b) and entered the foyer of their residence. Neither of the § 87(2)(b) stated any objection to any officer entering the foyer of their building. At some point, either one or two officers handcuffed § 87(2)(b). An officer walked upstairs to § 87(2)(b) and § 87(2)(b)’s kitchen, which is not separated from the foyer by a door, and recovered a knife. Neither § 87(2)(b) nor § 87(2)(b) stated any objection to the officer ascending the stairs and entering the kitchen area of the apartment. § 87(2)(b) stated that she wished to press charges against § 87(2)(b) and § 87(2)(b) was escorted to the 47th Precinct stationhouse and was later released when § 87(2)(b) signed an affidavit in support of declining/deferring prosecution. § 87(2)(b) went to § 87(2)(b) the following day.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

² § 87(2)(g)

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

[illegible]

Allegation A: Sgt. Timothy Dowling entered and searched § 87(2)(b) in the Bronx
Allegation B: PO Michael Verbrugge entered § 87(2)(b) in the Bronx

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

In *New York Search and Seizure*, Barry Kamins notes, “Some courts have held that when a police officer engages in conversation with a suspect while the officer is outside the apartment and, during the conversation, the officers enter the apartment *without objection* by the suspect, the suspect has consented ‘by inference’ to the warrantless entry” (encl. 1a). § 87(2)(g)

it is recommended that Allegations A and B be closed as **exonerated**.

Allegation C: Sgt. Timothy Dowling used physical force against § 87(2)(b)

Patrol Guide Procedure 203-11 states that “[p]ersons taken into custody (i.e., arrest, mentally ill, emotionally disturbed, etc.) shall be rear cuffed at the earliest opportunity to reduce the potential for resistance, which may cause injuries,” and that “[o]nly that amount of force necessary to overcome resistance will be used to effect an arrest...” (encl. 2a-b) § 87(2)(g)

it is recommended that Allegation C be closed as **exonerated**.

Investigator: Jesse Spieler-Jones

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: